

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #

Date of filing:

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A.B., an infant by her Mother and Natural Guardian, HILDA
KEARNEY, and HILDA KEARNEY, individually,

Plaintiffs designate Kings
County as the place of trial

Plaintiffs,

Basis of the venue is the Locus
of Occurrence

-against-

THE CITY OF NEW YORK, POLICE OFFICER SONEY
VARGHESE-Shield No. 15438 and JOHN DOES-Police
Officers as yet unidentified,

SUMMONS

Plaintiffs reside at
2028 Creston Avenue, 7E
Bronx, New York 10453

Defendants.

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County of Bronx

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER SONEY VARGHESE-
Shield No. 15438
Tax ID # 957246
New York City Police Department-81st Precinct
30 Ralph Avenue
Brooklyn, New York 11221

Dated: Brooklyn, New York
June 2, 2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
A.B., an infant by her Mother and Natural Guardian, HILDA
KEARNEY, and HILDA KEARNEY, individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER SONEY
VARGHESE-Shield No. 15438 and JOHN DOES-Police
Officers as yet unidentified,

Defendants.

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Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF A.B., AN INFANT BY HER MOTHER
AND NATURAL GUARDIAN, HILDA KEARNEY**

1. That at all times hereinafter mentioned, plaintiffs were and still are residents
of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on August 20, 2019, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff's demands for adjustment or payment thereof,

and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearings of plaintiffs were held on December 4, 2019.

6. That on July 20, 2019, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on July 20, 2019, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, A.B., was lawfully present in front of the premises known as 254 Ralph Avenue, in the County of Kings, City and State of New York.

8. While at the aforementioned location, the infant plaintiff, A.B., was approached and was assaulted and battered by the defendants, POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being grabbed, tackled to the ground and was forcefully placed in handcuffs. The infant plaintiff was taken under police custody to the New York City Police Department, specifically the 81st Precinct where she was held for a period of time. Later that day, the infant plaintiff was released to the custody of her grandmother without being charged with a crime.

9. That on July 20, 2019, and at all times hereinafter mentioned and upon information and belief, infant plaintiff, A.B., was assaulted and battered by defendants, POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet

unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

10. That on July 20, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on July 20, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the infant plaintiff, A.B., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on July 20, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the infant plaintiff, A.B., was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, infant plaintiff, A.B., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION OF A.B., AN INFANT BY HER MOTHER
AND NATURAL GUARDIAN, HILDA KEARNEY**

15. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "14"

herein, as though more fully set forth herein at length.

16. That defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered, falsely arrested and violated the civil rights of the infant plaintiff, A.B.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the infant plaintiff, A.B., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST OF A.B., AN INFANT BY HER MOTHER
AND NATURAL GUARDIAN, HILDA KEARNEY**

19. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "18" herein, as though more fully set forth herein at length.

20. That on July 20, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the infant plaintiff, A.B.

21. That on July 20, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, infant plaintiff, A.B., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

23. By the reason of the foregoing, infant plaintiff, A.B., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON
BEHALF OF A.B., AN INFANT BY HER MOTHER
AND NATURAL GUARDIAN, HILDA KEARNEY**

24. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "23" herein, as though more fully set forth herein at length.

25. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

26. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, A.B.

27. That as a result of said intentional and negligent acts, infant plaintiff, A.B., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse

parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

28. By reason of the foregoing, the infant plaintiff, A.B., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL RIGHTS
VIOLATION ON BEHALF OF A.B., AN INFANT BY HER MOTHER
AND NATURAL GUARDIAN, HILDA KEARNEY**

29. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "28" herein, as though more fully set forth herein at length.

30. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by infant plaintiff, A.B.

31. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

32. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

33. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to

POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

34. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

35. As a direct and proximate result of this unlawful conduct, the infant plaintiff, A.B., sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF A.B., AN INFANT BY
HER MOTHER AND NATURAL GUARDIAN, HILDA KEARNEY**

36. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "35" herein, as though more fully set forth herein at length.

37. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

38. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but

not limited to POLICE OFFICER SONEY VARGHESE-Shield No. 15438 and JOHN DOES-
Police Officers as yet unidentified, herein-above alleged.

39. By reason of the foregoing, the infant plaintiff, A.B., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR LOSS
OF SERVICES ON BEHALF OF HILDA KEARNEY,
AS MOTHER AND NATURAL GUARDIAN OF INFANT, A.B.**

40. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" - "39" herein, as though more fully set forth herein at length.

41. That at all times hereinafter mentioned, plaintiff, HILDA KEARNEY, was the Mother and Natural Guardian of the infant plaintiff, A.B., and as such said plaintiff, HILDA KEARNEY, was entitled to the society and services of said infant plaintiff, A.B.

42. By reason of the defendants' aforementioned negligence, the plaintiff HILDA KEARNEY, was deprived of the society and services of the infant plaintiff, A.B., and shall forever be deprived of said society and services.

43. As a result of herein above, plaintiff, HILDA KEARNEY, has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, A.B.

44. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, HILDA KEARNEY, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

WHEREFORE, plaintiff, A.B., an infant by her Mother and Natural Guardian, HILDA KEARNEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, A.B., an infant by her Mother and Natural Guardian, HILDA KEARNEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, A.B., an infant by her Mother and Natural Guardian, HILDA KEARNEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, A.B., an infant by her Mother and Natural Guardian, HILDA KEARNEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, A.B., an infant by her Mother and Natural Guardian, HILDA KEARNEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, A.B., an infant by her Mother and Natural Guardian, HILDA KEARNEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, HILDA KEARNEY, Mother and Natural Guardian of the infant plaintiff, A.B., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Seventh Cause** of Action; together with attorneys'

fees and the costs and disbursements of this action.

DATED: Brooklyn, New York
June 2, 2020

Yours, etc.,
Robert Mijuca
ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 19AB07-20

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
June 2, 2020

Robert Mijuca
ROBERT MIJUCA, ESQ.